SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 593 of 2007 (YEAR: 2011)

CORAM: D.K. JAIN, P. SATHASIVAM, J.M. PANCHAL, R.M. LODHA, H.L. DATTU

Vijaysinh Chandubha Jadeja
... Appellant(s) / Petitioner(s)
Versus
State of Gujarat
... Respondent(s)

Acts Referred:	Narcotic Drugs and Psychotropic Substances Act, 1985
Sections:	Section 50 NDPS

JUDICIAL HEADNOTE & SUMMARY

Constitution bench held that informing suspect of their statutory right under Section 50 NDPS to be searched before a Gazetted Officer or Magistrate is mandatory; failure vitiates conviction.

RATIO DECIDENDI

The Court held that: Constitution bench held that informing suspect of their statutory right under Section 50 NDPS to be searched before a Gazetted Officer or Magistrate is mandatory; failure vitiates conviction. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Vijaysinh Chandubha Jadeja v. State of Gujarat (Criminal Appeal No. 593 of 2007) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Narcotic Drugs and Psychotropic Substances Act, 1985, particularly Section 50 NDPS. Constitution bench held that informing suspect of their statutory right under Section 50 NDPS to be searched before a Gazetted Officer or Magistrate is mandatory; failure vitiates conviction.

OPERATIVE ORDER

ORDER: Decided